

**CHAPTER clxiii.**

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 relating to Chepping Wycombe (Extension) Harrow and District Sandwich Deal and Walmer and Sevenoaks. A.D. 1911.
[18th August 1911.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act : 45 & 46 Vict.
c. 56.
51 & 52 Vict.
c. 12.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 4) Act 1911. Short title.

2. The several Orders as amended and set out in the schedule to this Act are hereby confirmed and the same shall from and after the passing and subject to the provisions of this Act have full validity and effect. Orders in
schedule
confirmed.

A.D. 1911.

For pro-
tection of
Middlesex
County
Council.

3.—(1) Nothing in the Harrow and District Electric Supply Order 1911 confirmed by this Act shall in any way limit or affect the powers of the Middlesex County Council (in this section referred to as "the county council") to rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such works give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county council necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

SCHEDULE.

A.D. 1911.

LIST OF ORDERS.

1. CHEPPING WYCOMBE (EXTENSION).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Wycombe (Borough) Electric Light and Power Company Limited.
 2. HARROW AND DISTRICT.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Harrow Electric Light and Power Company Limited.
 3. SANDWICH DEAL AND WALMER.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Sandwich Deal and Walmer Electricity Supply Company Limited.
 4. SEVENOAKS.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Sevenoaks.
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A.D. 1911.

CHEPPING WYCOMBE (EXTENSION) ELECTRIC
LIGHTING.*Chepping
Wycombe.*

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Wycombe (Borough) Electric Light and Power Company Limited in respect of part of the Borough of Chepping Wycombe and the Parishes of West Wycombe Chepping Wycombe Rural and Hughenden all in the Rural District of Wycombe and for the amendment of the Chepping Wycombe Electric Lighting Order 1894.

WHEREAS by the Chepping Wycombe Electric Lighting Order 1894 confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1894 the mayor aldermen and burgesses of the borough of Chepping Wycombe (hereinafter called "the corporation") were authorised to supply energy as therein defined within the said borough as the same was constituted at the commencement of the said Order:

And whereas by an indenture dated the second day of November 1897 and made between the corporation of the one part and the above named company (hereinafter called "the company") of the other part the undertaking authorised by the said Order was transferred to the said company by the corporation subject to a right reserved to the corporation of resuming the said undertaking and purchasing the works connected therewith as in the said indenture mentioned:

And whereas it is expedient that the area of supply under the said Order should be extended and that the said Order should be amended as hereinafter appearing:

The following provisions shall accordingly have effect under this Order:—

Short and
collective
titles.

1. This Order may be cited as the Chepping Wycombe (Extension) Electric Lighting Order 1911 and the Chepping Wycombe Electric Lighting Order 1894 (hereinafter called "the principal Order") and this Order may be cited together as the Chepping Wycombe Electric Lighting Orders 1894 and 1911.

Construction.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 are (with the exception of sections 83 and 84 of that schedule) incorporated with and form part of this Order and the undertaking authorised by the principal Order and the Undertakers in respect thereof shall be subject to those provisions and so much of the principal Order as is inconsistent with those provisions or with this Order is hereby

repealed without prejudice to anything done or suffered thereunder
 Provided that in the event of the corporation acquiring the undertaking
 within that part of the area added by this Order which is outside the said
 borough and so long as the same is vested in them sections 23 and 65 of
 the said schedule shall apply to the undertaking within that part of the
 said area as if the corporation were the local authority.

A.D. 1911.

*Chepping
Wycombe.*

3. Subject to the provisions of this Order there shall be added to
 the area of supply for the purposes of the principal Order the area
 (hereinafter called "the added area") which is described in the First
 Schedule to this Order and is more particularly delineated on the map
 deposited together with this Order at the Board of Trade by the
 Undertakers and signed by an assistant secretary to the Board of Trade.

Area of
supply.

4. Subject to the provisions of this Order there shall be added to
 the list of streets and parts of streets mentioned in the Second Schedule
 to the principal Order (being the streets and parts of streets throughout
 which the Undertakers are to lay down suitable and sufficient distributing
 mains for the purposes of general supply) the streets and parts of streets
 mentioned in the Second Schedule to this Order.

Compulsory
works.

5. Subject to the provisions of this Order there shall be added to the
 list of streets mentioned in the Third Schedule to the principal Order
 (being streets not repairable by the local authority which may be broken
 up by the Undertakers) the streets and parts of streets not repairable by
 the local authority mentioned in the Third Schedule to this Order.

Power to
break up
streets &c.

6.—(1) When the corporation become entitled and give notice to the
 company of their intention to purchase the undertaking authorised by the
 principal Order they may by such notice require the company to transfer
 and the company shall if so required transfer to the corporation at the
 same time the extended part of the said undertaking which is authorised
 by this Order or so much thereof as shall then be vested in the company
 on the same terms as if the whole of the undertaking purchased had been
 authorised by the principal Order and were within the jurisdiction of the
 corporation.

Transfer to
corporation
of Wycombe.

(2) Nothing in this section shall affect the power of the local
 authority within whose jurisdiction so much of the added area as is
 outside the said borough is situate to purchase under section 2 of the
 Electric Lighting Act 1888.

7. The sum to be deposited or secured in pursuance of section 5 of
 the schedule to the Electric Lighting (Clauses) Act 1899 in respect of the
 added area is two hundred pounds that is to say one hundred pounds in
 respect of so much of the added area as is within the said borough and
 one hundred pounds in respect of so much of the added area as is outside
 the said borough.

Security for
execution of
works.

A.D. 1911.

*Chepping
Wycombe.*
Application
of principal
Order to
added area.

8. In the application of the provisions of the principal Order as amended by this Order to so much of the area of supply as is added by this Order the expression "commencement of this Order" shall mean the day on which the Act confirming this Order is passed.

SCHEDULES.

FIRST SCHEDULE.

The added Area.

So much of the borough of Chepping Wycombe as the same is constituted at the commencement of this Order as was not included in the principal Order and the parishes of West Wycombe Chepping Wycombe Rural and Hughenden all in the rural district of Wycombe as those parishes are constituted at the commencement of this Order provided that in case of difference between the description in this schedule and the area as delineated on the deposited map the latter is to prevail.

SECOND SCHEDULE.

List of streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

In the borough of Chepping Wycombe—

West Wycombe Road Hughenden Road Hughenden Avenue Amersham Road Marlow Hill London Road.

In the parish of West Wycombe—

West Wycombe Road from Borough Boundary to Plomers Hill Road.

In the parish of Chepping Wycombe Rural—

Amersham Road from Borough Boundary to Beech Tree Public House.

In the parish of Hughenden—

Hughenden Road from Borough Boundary to Manor Lane.

THIRD SCHEDULE.

A.D. 1911.

Chepping
Wycombe.

List of streets and parts of streets not repairable by the local authority which by virtue of this Order may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

1. Within the added area:—

In the borough of Chepping Wycombe—

Ogilvie Road Desborough Park Road from Dashwood Avenue to Borough Boundary Dashwood Avenue from Desborough Park Road to Borough Boundary Abercrombie Avenue from Desborough Park Road to Borough Boundary Grafton Street Hughenden Avenue Hamilton Road Shrubbery Road Lucas Road Terry Road King's Road Ashwell Road Vivian Road Pimm's Grove Avenue road under Great Western and Great Central Railway at Hammersley Lane.

In the parish of West Wycombe—

Castlefield Road Sands road under Great Western and Great Central Railway from West Wycombe to Bradenham footpath over Great Western and Great Central Railway from West Wycombe Road to Downley road over Great Western and Great Central Railway from West Wycombe Road to Downley at Downley Pitch.

2. Within the area of supply under the principal Order:—

Leigh Street Cedar Terrace Hamilton Road Temple Works Lane Castle Hill Conegra Road Peterborough Avenue Rectory Avenue Lucas Road Hampden Road Pinions Road Kingsley Road Springfield Road Rosebery Avenue Cromwell Road Alexandra Road Dartmouth Street Kent Street Park Street Queen Street Pennington Row Albert Street road over Great Western and Great Central Railway at Amersham Hill near High Wycombe Station road over Great Western and Great Central Railway at Hatters Lane.

A.D. 1911.

HARROW AND DISTRICT ELECTRIC SUPPLY.

*Harrow and
District.*

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Harrow Electric Light and Power Company Limited in respect of portions of the Urban District of Wealdstone in the County of Middlesex and for connecting that Company's generating station in Harrow-on-the-Hill with the said Urban District.

Short title.

1. This Order may be cited as the Harrow and District Electric Supply Order 1911.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Harrow Electric Light and Power Company Limited being a company registered under the Companies Acts 1862 to 1890 with limited liability and having its registered office at Harrow-on-the-Hill in the county of Middlesex.

Area of
supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

As to use of
generating
station in
Harrow-on-
the-Hill.

5. For the purpose of carrying into effect the provisions of this Order and of affording a supply of electricity thereunder the Undertakers may use their existing generating station and electric lines in the urban district of Harrow-on-the-Hill and may use any electric mains pipes lines wires apparatus or conveniences of the Undertakers in or on the roads and parts of roads mentioned in the Second Schedule to this Order and may for the purpose of laying down taking up altering removing or repairing any necessary mains pipes lines wires apparatus or conveniences exercise and enjoy in relation to the said roads and parts of roads mains pipes wires apparatus and conveniences all rights powers and privileges of undertakers under the Electric Lighting Acts 1882 to 1909 and the Electric Lighting (Clauses) Act 1899.

Power to
break up
streets.

6. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and

parts of streets not repairable by the local authority which are mentioned in the Third Schedule to this Order.

A.D. 1911.

Harrow and
*District.*Compulsory
works.

7. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Fourth Schedule to this Order.

8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fifth Schedule to this Order.

Maximum
prices.

9. Nothing in this Order contained shall in any way prejudice the rights of the Harrow-on-the-Hill Urban District Council (in this section called "the council") under the Harrow Electric Lighting Order 1894 or the Harrow-on-the-Hill Electric Lighting Order 1900 nor shall any works constructed or laid down or used by the Undertakers under this Order exclusively for the supply of electricity beyond the areas respectively described in the First Schedules to the said Orders of 1894 and 1900 be deemed to be included in the expression "the undertaking lands buildings works machinery and plant of the Company" in paragraph 20 of an indenture dated the 14th day of October 1895 and made between the council of the one part and the Undertakers of the other part either for the purpose of that paragraph or for the purposes of paragraph 7 of an indenture dated the 1st day of April 1901 and made between the same parties.

For pro-
tection of
urban dis-
trict council
of Harrow-
on-the-Hill.

10.—(1) If at any time hereafter the Wealdstone Urban District Council (in this section called "the council") shall be authorised by Provisional Order confirmed by Parliament to supply electrical energy and shall prove to the satisfaction of the Board of Trade that they are ready and willing to supply electrical energy within their district they may at any time thereafter upon giving to the Undertakers six months' notice in writing require the Undertakers to sell and thereupon the Undertakers shall sell to the council and the council shall purchase the mains service cables boxes meters and other apparatus (in this section referred to as "the distributing plant") of the Undertakers situate in the parts of the urban district of Wealdstone comprised in the area of supply under this Order upon the terms of the council paying to the Undertakers the cost price thereof less a sum for depreciation of two pounds ten shillings per centum for each year since the expenditure was incurred the amount to be paid in default of agreement to be determined by arbitration and the Undertakers shall on the completion of such purchase at their own expense disconnect such distributing plant from the mains of the Undertakers in the remainder of the area of supply of the Undertakers.

Purchase by
Wealdstone
Urban Dis-
trict Council.

A.D. 1911.

*Harrow and
District.*

(2) The Board of Trade may determine any question which arises with reference to the purchase the determination whereof is not otherwise provided for by this section and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(3) As from the date on which any such purchase takes effect the distributing plant shall vest in the council freed from all debts mortgages or other similar obligations of the Undertakers or attaching to their undertaking and the powers and obligations of the Undertakers in relation to the supply of electrical energy within the parts of the Wealdstone Urban District comprised in the area of supply under this Order or the principal Act shall absolutely cease and determine.

(4) The power of purchase given by this section shall be in addition to and not in derogation of the power of the council to purchase under section 2 of the Electric Lighting Act 1888.

Commence-
ment of
Order.

11. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

Area of Supply.

The following portions of the urban district of Wealdstone as constituted at the commencement of this Order viz. (1) So much of the said urban district as lies south of Bonnersfield Lane and west of the main line of the London and North Western Railway Company and (2) So much of the said urban district as lies within a line commencing at a point on the southern boundary of the said urban district situate 170 yards or thereabouts westward of the junction of Hindes Road and Station Road and drawn thence along the boundary of the said urban district first westwards thence northwards thence eastwards thence southwards and thence eastwards to the north-east corner of the inclosure numbered 54 on the 25¹/₅₀ Ordnance map (second edition 1896 Middlesex sheet X 7) and thence eastwards across the inclosure numbered 59 on the said Ordnance map to the north-east corner of the inclosure numbered 56 on the said Ordnance map (Middlesex sheets X 7 and X 8) and thence southwards along the eastern boundary of the said inclosure numbered 56 and terminating at the said point of commencement of the said line Provided always that in case of difference between this description and the area as delineated on the deposited map the latter is to prevail.

SECOND SCHEDULE.

A.D. 1911.

*Harrow and
District.*

List of roads and parts of roads within the urban district of Harrow-on-the-Hill proposed to be broken up for the purpose of enabling electricity to be brought into the area of supply from the generating station of the Undertakers.

West Street Bessborough Road Vaughan Road Pinner Road (from Roxborough Bridge to the urban district boundary) Roxborough Parade (part of College Road) Headstone Road Hindes Road High Street (from West Street to Grove Hill) Peterborough Hill Grove Hill Lowlands Road Station Road (from Lowlands Road to Station Road Bridge and from Lyon Road to the urban district boundary) Lyon Road Gayton Road Sheepcote Road (from Gayton Road to its junction with Kenton Road) the roadway on Roxborough Bridge over the Metropolitan Railway in Bessborough Road and Pinner Road and the roadway on the bridge over the Metropolitan Railway in Station Road.

THIRD SCHEDULE.

List of streets and parts of streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Nibthwaite Road from Hamilton Road to Radnor Road Hamilton Road Manor Road Gerard Road Balfour Road and the roadway on the bridge in Sheepcote Road over the Metropolitan Railway.

FOURTH SCHEDULE.

List of streets and parts of streets throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after the commencement of this Order.

Hindes Road Headstone Road Warrington Road Radnor Road Hamilton Road Gayton Road Northwick Park Road Sheepcote Road from the district boundary to Kenton Road Manor Road and Gerard Road.

A.D. 1911.

*Harrow and
District.*

FIFTH SCHEDULE.

Maximum Prices.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

SANDWICH DEAL AND WALMER ELECTRIC
LIGHTING.

*Sandwich
Deal and
Walmer.*

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Sandwich Deal and Walmer Electricity Supply Company Limited in respect of the Boroughs of Sandwich and Deal and the Urban District of Walmer all in the County of Kent.

Short title.

1. This Order may be cited as the Sandwich Deal and Walmer Electric Lighting Order 1911.

Incorporation
of Electric
Lighting
(Clauses)
Act 1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting

(Clauses) Act 1899 are the Sandwich Deal and Walmer Electricity Supply Company Limited being a company registered under the Companies (Consolidation) Act 1908 and whose registered office is situate at 36 Castle Street Dover in the county of Kent.

A.D. 1911.

*Sandwich
Deal and
Walmer.*

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Area of
supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and part of a street not repairable by the local authority and the railway which is mentioned in the Second Schedule to this Order.

Power to
break up
streets and
railways.

6.—(1) The Undertakers may also for the purpose of connecting that part of the area of supply which comprises the borough of Deal with the part of such area which comprises the borough of Sandwich break up the road situate outside the area of supply which is known as the Deal and Sandwich Road between the said boroughs.

Power to
break up
roads outside
area of
supply.

(2) The Undertakers may also for the purpose of obtaining from the mayor aldermen and burgesses of the borough of Dover a supply of energy for distribution within the area of supply break up the road outside that area which is known as the Dover and Deal Road between the said borough of Dover and the urban district of Walmer.

(3) The Undertakers shall in respect of the said roads have for the said purposes the same rights and be subject to the same obligations and liabilities as if such roads were situated within the area of supply.

(4) The power conferred upon the Undertakers by this section shall not be exerciseable without the consent of the authority company or person by whom the said roads are repairable or if that consent is withheld with the consent of the Board of Trade under section 13 of the Electric Lighting Act 1882.

7. The parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory
works.

8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order

Maximum
prices.

A.D. 1911.

Sandwich
Deal and
Walmer.
Deposit.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is one hundred pounds in respect of the borough of Sandwich one hundred pounds in respect of the borough of Deal and one hundred pounds in respect of the urban district of Walmer.

As to works
at Sandwich
Bridge.

10. The Undertakers shall not without the consent in writing of the mayor aldermen and burgesses of the borough of Sandwich (hereinafter called "the corporation") lay down or construct any electric lines or works in or upon the swing bridge across the river or haven of Sandwich known as the Sandwich Bridge or in or upon the road thereon or the approaches thereto Provided that in the event of the corporation refusing such consent they shall afford the Undertakers reasonable facilities for laying their electric lines and works in over under or across the said river or haven but so that such lines and works shall not impede or in any manner interfere with the navigation of vessels in the said river or haven.

Notice of
intention to
break up
streets
adjoining
Admiralty
property.

11. Where the exercise of the powers of the Undertakers will involve the breaking up of the street known as Dover Road in the urban district of Walmer or any other street immediately adjoining any property belonging to the Admiralty the Undertakers shall three clear days before commencing the execution of the works give to the officer in charge of works Royal Marine Depôt Deal notice in writing of their intention to break up the street Provided that in case of emergency it shall suffice if the notice is given as soon as practicable after the emergency has arisen.

Power of
purchase for
corporation
of Sandwich.

12.—(1) The mayor aldermen and burgesses of the borough of Sandwich (hereinafter called "the corporation") may at any time after the expiration of twenty-one years from the commencement of this Order require the Undertakers to sell and thereupon the Undertakers shall sell to the corporation so much of their undertaking as is within the jurisdiction of the corporation including all lands buildings works materials and plant within such jurisdiction suitable to and used by the Undertakers solely for the purposes of their undertaking therein.

(2) The corporation shall pay to the Undertakers the fair market value of the part of the undertaking purchased as a going concern to be determined in default of agreement by arbitration In arriving at such value an allowance shall be made for goodwill but not for compulsory purchase.

(3) The Board of Trade may determine any question which arises with reference to the purchase which is not to be settled by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(4) From the date on which the purchase takes effect the undertaking (so far as it relates to the borough of Sandwich) shall vest in the corporation freed from all debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of the borough of Sandwich shall absolutely cease and determine and shall vest in the corporation who shall subject to the provisions of this Order become the Undertakers for the purposes of this Order so far as it relates to the borough aforesaid.

A.D. 1911.

*Sandwich
Deal and
Walmer.*

(5) The power of purchase given by this section shall be in addition to and not in derogation of the power of the corporation to purchase under section 2 of the Electric Lighting Act 1888.

(6) Notwithstanding a purchase by the corporation under the special power conferred upon them by this section or under section 2 of the Electric Lighting Act 1888 the Undertakers shall for the purpose of affording a supply of energy to the corporation for distribution within their borough retain the power hereinbefore conferred upon them in respect of the said Deal and Sandwich Road.

13. The Undertakers shall not except with the approval of the Commissioners of Works erect any generating station or take a supply of energy from any generating station situate within a distance of a quarter of a mile from any part of Walmer Castle Deal Castle or the Duke of York's Royal Military School or the grounds attached thereto unless the site for such generating station is specified in an Act of Parliament or in an Order confirmed by or having the effect of an Act of Parliament Provided always that this section shall not apply to any sub-station for the transformation and distribution of electrical energy or to any station which may be in existence and which shall not be extended beyond the limits of the site occupied by the buildings of such station at the commencement of this Order.

For protec-
tion of Com-
missioners of
Works.

14. Nothing contained in this Order shall entitle the Undertakers to supply electricity within or for use within any part of the area of supply of the Kent Electric Power Company not included in the area of supply under this Order but this section shall not in any way affect the right of the Undertakers to make application to the Board of Trade under sections 5 and 6 of the Electric Lighting Act 1909 and to supply electricity with the consent of that Board thereunder.

For pro-
tection of
Kent Electric
Power Com-
pany.

15. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of
Order.

A.D. 1911.

Sandwich
Deal and
Walmer.

SCHEDULES.

FIRST SCHEDULE.

Area of Supply.

The boroughs of Sandwich and Deal and the urban district of Walmer.

SECOND SCHEDULE.

List of streets and part of a street not repairable by the local authority and a railway which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS:—

In the borough of Deal—

The road over the railway bridge at Deal Station on the South Eastern and Chatham Railway (being a continuation of Queen Street).

In the urban district of Walmer—

Sydney Road from Waterworks Road to within 633 feet of its junction with Station Road Granville Road Park Road an unnamed road leading on to Hawks Hill Estate from Wellington Road near Walmer Castle an unnamed road leading on to Hawks Hill Estate from Wellington Road near the Kingsdown end of the said estate.

(b) RAILWAY:—

The level crossings over the South Eastern and Chatham Railway at St. Bartholomew's Road and Ash Road Sandwich.

THIRD SCHEDULE.

Parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for purposes of general supply within a period of two years after the commencement of this Order.

In the borough of Sandwich—

New Street from the South Eastern and Chatham Railway to the Market Galliard Street from New Street to King Street King Street from Galliard Street to Market Street Delf Street from Market Street to Harnet Street High Street from King Street to Strand Street Strand Street from High Street to Paradise Row.

In the borough of Deal—

Victoria Road from the municipal borough boundary to High Street
High Street from Victoria Road to College Road Queen Street from
High Street to West Street Broad Street from High Street to Beach
Street Beach Street from Sondes Road to King Street.

A.D. 1911.

Sandwich
Deal and
Walmer.

In the urban district of Walmer—

The Strand from the municipal borough boundary of Deal to Canada
Road Liverpool Road from the Strand to Alexandra Road Dover
Road from Canada Road to Station Road Upper Walmer.

FOURTH SCHEDULE.

Maximum Prices.

In this schedule—

The expression "unit" shall mean the energy contained in a
current of one thousand ampères flowing under an electro-
motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of
energy supplied to him they shall be entitled to charge him at the
following rates per quarter For any amount up to twenty units thirteen
shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical
quantity contained in the supply given to him they shall be entitled
to charge him according to the rates set forth in section 1 of this
schedule the amount of energy supplied to him being taken to be the
product of that electrical quantity and the declared pressure at the
consumer's terminals that is to say such a constant pressure at those
terminals as may be declared by the Undertakers under the Board of
Trade regulations.

A.D. 1911.

SEVENOAKS ELECTRIC LIGHTING.

Sevenoaks. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Sevenoaks in respect of the Urban District of Sevenoaks in the County of Kent.

Short title.

1. This Order may be cited as the Sevenoaks Electric Lighting Order 1911.

Incorporation
of Electric
Lighting
(Clauses)
Act 1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the urban district council of Sevenoaks.

Area of
supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to
break up
streets.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Compulsory
works.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum
prices.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Revision of
prices so as
to balance
revenue and
expenditure.

8.—(1) The Undertakers shall so soon as the annual statement of accounts of the undertaking under this Order has been filled up in the form prescribed by the Board of Trade under the Electric Lighting Act 1882 publish in a newspaper circulating in the urban district a notification that such statement of accounts has been filled up and that

copies of it can be obtained at the offices of the Undertakers at a price not exceeding one shilling a copy and such publication shall be in addition to and not in substitution for any publication prescribed by the Board of Trade under the Electric Lighting Act 1882.

A.D. 1911.

Sevenoaks.

(2) The Undertakers shall on the expiration of the fifth complete financial year after they have commenced to supply electrical energy under this Order and on the expiration of each third succeeding year reconsider and if necessary revise and thereafter maintain the scales of prices charged for electrical energy under this Order so that so far as is reasonably practicable no rate will be required for the purpose of defraying the future expenses of the said undertaking during the next three years Provided nevertheless that—

- (a) the prices to be charged shall not exceed the maximum prices which may be charged under this Order;
- (b) the scales of prices so reconsidered and revised may be from time to time in like manner reconsidered and revised by the Undertakers.

(3) Nothing in this section contained shall prevent the Undertakers from entering into contracts for periods which may extend beyond the periods at which any revision may take place under the provisions of this section on special terms under special circumstances not applicable to ordinary consumers but each such contract shall provide that the price to be charged for energy supplied under such contract shall either—

- (a) be subject to revision at the next triennial revision provided for in this section; or
- (b) vary in the same proportion as the prices charged to ordinary consumers:

Provided that the Undertakers shall not without their consent be required to accept any price lower than the minimum price mentioned in such contract.

(4) There shall not be made against the district rate or any other rate for energy used by the Undertakers for street lighting or any other purpose a charge at a higher price than that charged to consumers using energy for similar purposes and for the like hours of supply.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of
Order.

A.D. 1911.

*Sevenoaks.*SCHEDULES.FIRST SCHEDULE.*Area of Supply.*

The urban district of Sevenoaks as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of streets and parts of streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Buckhurst Lane Clarendon Road Crampton's Road Grove Road Kippington Road Linden Chase Road Oak Hill Road Serpentine Road St. Botolph's Avenue St. James' Road from St. George's Road to Golding Road Vine Avenue Woodside Road from Bradbourne Park Road to Mount Harry Road Knole Road Prospect Place Solefields Road a road leading from Solefields Road to Oak Lane terminating near the Water Works an occupation road leading from Ashgrove Road to Fig Street terminating near the Isolation Hospital.

THIRD SCHEDULE.

List of streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

High Street Dartford Road (from High Street to St. John's Road) London Road (for a distance of 300 yards or thereabouts from junction with High Street) Granville Road Pembroke Road Eardley Road The Drive St. Botolph's Road (from Dartford Road to Vine Avenue) Hitchen Hatch Lane (for a distance of 600 yards from Tub's Hill) Mount Harry Road Vine Court Road Park Lane St. John's Hill St. John's Road St. George's Road Linden Chase Road Bayham Road Serpentine Road Knole Road Circular Road.

FOURTH SCHEDULE.

A.D. 1911.

*Sevenoaks.**Maximum Prices.*

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

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